

Complaint Report (CCRB)

CCRB Case No :	202003654	C/V Report Date :	Thu, 05/21/2020 10:58 PM
Complaint Type :	CCRB	Investigator :	William Rasenberger
Complaint Made At :	IAB	Ref. No	20-13207
Received Date (CCRB) :	Fri, 05/29/2020 11:36 AM	Mode :	Phone
Incident Date(s) :	Thursday, 05/21/2020 10:20 PM		
Place of Occurrence:	[REDACTED]	Precinct:	44
Location :	Apartment/house	Boro:	Bronx
Reason for Initial Contact :	PD suspected C/V of violation/crime - street		
Charges:	No arrest made or summons issued		

Complainant/Victim Details

Name:	[REDACTED]	Type:	Comp/Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Name:	[REDACTED]	Type:	Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Name:	[REDACTED]	Type:	Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Officer(s) Named in Complaint

Rank	Officer	S/W Officer	Tax No	Race	Cmd	Allegations/Board Dispositions
	Officers	Subject Officer				Refusal to provide shield number - (A) Exonerated
POM	John Echevarria	Subject Officer	953836	Hispanic	043	Frisk - (A) Unfounded
SGT	Joseph Signorile	Subject Officer	949663	White	047	Entry of Premises - (A) Exonerated
SGT	Joseph Signorile	Subject Officer	949663	White	047	Stop - (A) Substantiated (Command Discipline A)
POM	Austin Hieronymi	Subject Officer	957676	White	047	Gun Drawn - (A) Exonerated
POM	Austin Hieronymi	Subject Officer	957676	White	047	Physical force - (punched/kicked/knead) - (F) Unfounded
POM	Dennis Vargas	Subject Officer	957245	Hispanic	042	Gun Pointed - (F) Exonerated
POM	Dennis Vargas	Subject Officer	957245	Hispanic	042	Gun Pointed - (F) Exonerated
POM	Dennis Vargas	Subject Officer	957245	Hispanic	042	Gun Pointed - (F) Exonerated
POM	Dennis Vargas	Subject Officer	957245	Hispanic	042	Word - (D) Exonerated
POM	Dennis Vargas	Subject Officer	957245	Hispanic	042	Word - (D) Exonerated
POM	Dennis Vargas	Subject Officer	957245	Hispanic	042	Word - (D) Exonerated
POM	Dennis Vargas	Subject Officer	957245	Hispanic	042	Stop - (A) Substantiated (Command Discipline A)
PO	RICHARD PODLOVITS	Subject Officer	957965	White	K50	Gun Pointed - (F) Exonerated
PO	RICHARD PODLOVITS	Subject Officer	957965	White	K50	Gun Pointed - (F) Exonerated
PO	RICHARD PODLOVITS	Subject Officer	957965	White	K50	Gun Pointed - (F) Exonerated
PO	RICHARD PODLOVITS	Subject Officer	957965	White	K50	Frisk - (A) Exonerated
	An officer	Subject Officer				Word - (D) Unfounded
POM	Anthony Saline	Witness Officer	962081	White	052	
POM	John Avellino	Witness Officer	958273	White	048	
SGT	THOMAS DEMKIW	Witness Officer	945658	White	486	
POM	Bory Echanique	Witness Officer	958540	Hispanic	043	
POM	Paul Kelly	Witness Officer	959726	White	047	

Initial Complaint Narrative

On May 21, 2020, § 87(2)(b) filed the following complaint with IAB, where it received Original Log # 2020-13013. It was referred to the CCRB, where it was received on May 29, 2020. On Thursday May 21, 2020, § 87(2)(b) sent his son, § 87(2)(b) outside to throw out the garbage. As he was outside several plain clothes officers in a black unmarked vehicle pulled up to § 87(2)(b) and asked "what's up". § 87(2)(b) stated nothing and continued throwing out the trash. The officers then told him to "come here" and they got out the car. § 87(2)(b) fled back into the building and yelled for his father because he did not know that they were officers. § 87(2)(b) heard the commotion and opened the door allowing § 87(2)(b) to come back inside. The officers then began banging on the door telling the male to open up. § 87(2)(b) and his brother grabbed knives to defend themselves because they initially did not know the people knocking on the door were police officers. A second vehicle, described as a gold SUV also pulled up in front of the building with more plain clothes officers inside it. As § 87(2)(b) opened the door, he saw the males had their guns drawn, were wearing badges, and gun belts with holsters and handcuffs, so he dropped the knife. The Officers tackled all three men and put them in handcuffs while holding them on the ground. They then questioned § 87(2)(b) for approximately 20 minutes. Afterward the officers took off everyone's handcuffs, documented § 87(2)(b)'s name from his school ID and then left.

Witness
